

Hanuman Prasad v. State of U.P. — Clause 6.8(b) notice must fix a hearing date

High Court of Judicature at Allahabad · Division Bench · 6 April 2016 · Writ - C No. 13875 of 2016 · **Writ allowed; recovery citation quashed; reasoned final assessment directed.**

HEADNOTE

Challenging a recovery citation after a theft-related provisional assessment of Rs.5,19,603, the Division Bench held that a Clause 6.8(b) notice which neither specified a date of hearing nor disclosed the basis of the demand denied adequate opportunity. The writ was allowed, the citation dated 8 March 2016 quashed, and a reasoned final assessment directed within six weeks after considering the petitioner's objections, following *Ashok Kumar v. State of U.P.*

FACTUAL SUMMARY

Hanuman Prasad challenged a recovery citation dated 8 March 2016 for Rs.5,19,603. After an interim stay of coercive action, the licensee's counsel served a copy of the provisional assessment. The petitioner said he had never received that notice, could not object, and the licensee treated the assessment as final. He invoked Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005, arguing that the notice itself had to fix a date of hearing.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) requires the provisional assessment notice itself to fix a date of hearing; a notice that omits that date is not in accordance with law and denies the consumer adequate opportunity. ¶ 1
2. A provisional assessment notice must disclose the basis of the assessed sum; a recovery citation issued on a notice that does neither is liable to be quashed, with a reasoned final assessment to follow after objections. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis of demand

HOLDING

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 that neither specifies a date of hearing nor discloses the basis of the assessed amount is not in accordance with law and does not afford the consumer adequate opportunity. A recovery citation founded on such a notice is liable to be quashed; a reasoned final assessment must then be made after considering the consumer's objections. ¶ 1

FLAG Counsel cited Clause 6.8(b)(1); the Court applied para 6.8(b) to a theft-assessment recovery, following *Ashok Kumar*, without separating cl. 6.8 (unauthorized use) from theft procedure.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS.5,19,603 ASSESSMENT AND WHETHER THEFT WAS MADE OUT

Final assessment remitted to the assessing officer after considering the petitioner's objections, with reasons, in light of *Ashok Kumar*. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 (DB)			1	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.